

**BEFORE THE FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES
WASHINGTON, D.C.**

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,
Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC,
Respondent.

**COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.’S LIMITED
REPLY IN SUPPORT OF ITS MOTION TO COMPEL VERIFIED
SUPPLEMENTAL DISCOVERY RESPONSES AND COMPLETE DOCUMENT
PRODUCTION**

Subject to the Presiding Officer’s grant of leave, Complainant Southern International Co., Ltd. (“SIC”) respectfully submits this Proposed Limited Reply. Respondent Daynamez Group of Companies LLC’s (“Daynamez”) July 20, 2026 Response (“Response”) narrows the pending Motion to Compel, but does not moot it.

SIC acknowledges the completed cures. Daynamez has now served a consolidated verification signed by Zia Kamali for its answers to Interrogatory Nos. 1–18 and its amended response to Request for Admission (“RFA”) No. 12. Resp. at 66. Daynamez also transmitted three Excel financial schedules, a clean copy of the Agency Agreement, and additional documents. SIC therefore no longer seeks an order compelling the formal verification alone or another clean copy of the Agreement.

The Response, however, does not resolve the other relief requested in Dkt. 41. It leaves its production statement unfinished; does not provide a finalized, request-by-request disposition stating, for each RFP still at issue, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Daynamez’s possession, custody, or control, or are subject to a specifically stated objection; does not produce or finally account for several native, source, and responsive communication records that it expressly identifies; does not provide a finalized, verified, and internally consistent account reconciling the sources Daynamez states were searched with the files actually transmitted and the unresolved alternatives retained at page 65; presents two differently defined outgoing-payment populations without reconciling their classifications or use; supplies aggregate financial compilations without the identified underlying bank-generated records or the transaction-to-shipment information requested; and gives an amended RFA response whose explanation leaves the scope of the denial uncertain. SIC does not ask the Presiding Officer to determine through this discovery motion that any document is fabricated, altered, inadmissible, or entitled to a particular evidentiary weight. The issue is whether Daynamez has supplied final, complete, and reviewable discovery responses concerning records and contentions on which it affirmatively relies.

I. THE JULY 20 SUBMISSION CURES DISCRETE ITEMS, NOT THE MOTION AS A WHOLE

Daynamez characterizes SIC's "principal remaining objection" as the absence of an executed verification and contends that every item was already substantively answered. Resp. at 1–2. Dkt. 41 states otherwise. The Motion separately identified missing native spreadsheets and source communications, absence of underlying bank records and transaction-level answers, conflicting completeness statements, an inaccurate production inventory, selected incomplete interrogatory answers, and RFA No. 12. Mot. at 1, 4–7. The accompanying Statement likewise limited relief to deficiencies remaining after the June 12 supplementation and expressly disclaimed any request for an authenticity or admissibility ruling. App. Statement ¶¶ 1–8.

The July 20 package cures or narrows several items:

1. The executed declaration at page 66 cures the formal verification defect for Interrogatory Nos. 1–18 and the amended RFA response.
2. The newly transmitted Excel Schedule of Funds and incoming/outgoing subsets partially cure the request for usable financial schedules, but do not supply the stated underlying monthly statements, a complete payment trail, or sufficient information to trace payments to each shipment at issue.
3. DAYNAMEZ-000104–000109 cures the request for a clean, unhighlighted Agency Agreement.
4. The July 20 package re-transmitted the Kargosmart exhibits and most of the previously produced Bates-stamped PDFs, while adding a clean Agency Agreement and new or revised financial files. Those additions expand the usable production in limited respects, but do not establish that all source files and responsive records identified in the Response were produced.

The July 20 submission does not, however, cure the absence of a finalized, request-by-request disposition stating, for each RFP remaining at issue, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Daynamez's possession, custody, or control, or are subject to a specifically stated objection. Nor does the submission establish that all responsive shipment-release, Net-Net, hold, release, and related email or WhatsApp communications were collected and produced.

The July 20 verified restatements also do not fully cure the request-specific deficiencies identified in Dkt. 41 for Interrogatory Nos. 3, 6, 12, 14, and 15. The answer to Interrogatory No. 3 still does not identify the website developer, the dates of use and the persons responsible for the website statement, or the related website-development and source records. The answer to Interrogatory No. 6 describes the Net-Net arrangement as static, unchanging, and not varied on a per-shipment basis, but also describes an initial 50/50 allocation that shifted to 40% for Daynamez and 60% for SIC. It does not reconcile those propositions, clearly state when and by whom each ratio became effective and how each ratio was applied to the shipments or transactions reflected in the cited spreadsheet, or produce the native source workbook underlying the calculations. The answer to Interrogatory No. 12 identifies three specific MBLs but addresses all other alleged holds and release impediments only categorically, without identifying, event by event, when Daynamez first learned of the event, the nature of the impediment, what Daynamez did in response, and the supporting records. The answers to Interrogatory Nos. 14 and 15 continue to rely on OOCL charges, reputational and business harm, indemnity, and shipment-related losses without fully identifying, as applicable, each claimed shipment, container, invoice, amount, calculation, factual

basis, and supporting record. SIC seeks supplementation only to the extent Daynamez continues to rely on those matters.

Any further supplemental answers ordered by the Presiding Officer should, however, be signed and verified as required. A cure is not complete merely because an additional document was served or because the Response states that an issue was addressed. Under 46 C.F.R. § 502.141(k), a materially incomplete or incorrect response must be supplemented or corrected, and an evasive or incomplete answer or response is treated as a failure to respond. Id. § 502.150(a)(1).

II. THE RESPONSE DOES NOT STATE A FINAL, OPERATIVE POSITION REGARDING PRODUCTION

The strongest evidence that production remains unresolved is the Response itself. Section IV, titled “Statement Regarding Production Format and Native Files,” contains three sets of uncompleted drafting instructions marked “[CONFIRM AND ATTACH BEFORE SERVING].” Resp. at 65. Those instructions offer alternative positions concerning:

- native Excel files for DAYNAMEZ-000024–000080 and DAYNAMEZ-000089–000091, and an Excel Bates Production Index Tracker;
- source-format email files and a WhatsApp export; and
- the DGS debt notice, an HBL surrender copy, and website-developer communications.

Daynamez selected none of the alternatives. It then stated, “[e]xcept as stated above,” that its production is complete. Id. The qualification cannot resolve the issue because the unfinished alternatives do not state which source files exist, which were served, which export methods were attempted, what remains available, what could not be located, or which matters Daynamez will not rely upon; nor do they reconcile the broad search account elsewhere in the Response with the files actually transmitted.

The actual July 20 transmittal confirms the mismatch. It included three Excel financial schedules, but did not identify as attachments the native shipment-release workbooks, native Net-Net workbook, Excel production tracker, source-format emails, WhatsApp export, DGS debt notice, HBL surrender copy, or developer communications described at page 65. The service package also included a “FINAL” response, a “WORKING v8” response, and a “DRAFT” response. A final corrective response should identify the single operative response, incorporate into that response any substantive statement appearing only in a Working or Draft version on which Daynamez intends to rely, and identify all other versions as withdrawn and superseded.

The verification does not resolve this RFP issue. Mr. Kamali verified only the “Supplemental Answers to Interrogatory Nos. 1 through 18 and the Amended Response to Request for Admission No. 12.” Resp. at 66. It does not adopt Section III’s RFP responses, state that the production is complete, or describe a reasonable search for the files left unresolved at page 65.

The Presiding Officer should order Daynamez to serve one finalized supplemental response that replaces Section IV, confirms which response is operative and which draft or working versions are superseded, and states, for each RFP still at issue, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Daynamez’s possession, custody, or control, or are subject to a specifically stated objection. For any matter or source record on which Daynamez no longer intends to rely, the finalized response should say so expressly.

III. THE SPECIFIC NATIVE AND SOURCE-FORMAT RELIEF REMAINS PROPORTIONAL AND NECESSARY

Rule 502.146 permits a request to specify the form of ESI production, requires the responding party to state any objection to that form, and otherwise requires production in the form ordinarily maintained or another reasonably usable form. Documents must be produced as kept in the usual course of business or organized and labeled to correspond to the requests. 46 C.F.R. § 502.146. FMC discovery procedures must, to the extent practicable, conform to the Federal Rules of Civil Procedure. 46 U.S.C. § 41303(a)(2). Persuasive federal practice likewise considers the requested form, any timely objection, and whether the production permits reasonable use. See *Covad Communications Co. v. Revonet, Inc.*, 254 F.R.D. 147, 149–50 (D.D.C. 2008).

SIC does not seek native production of every document. The remaining request is category-specific and tied to Daynamez's own representations:

- The shipment-release spreadsheets and Net-Net spreadsheet were produced as multi-page PDFs, while Daynamez represented that corresponding native Excel files were produced. The source workbooks are needed to review formulas, worksheet structure, cell relationships, and the calculation bases on which Daynamez relies.
- The produced PDF emails and WhatsApp screenshots do not establish that all responsive communications were collected and produced, or that available attachments, message-family relationships, complete thread context, native metadata, and export information were preserved. The remaining relief therefore includes both reasonably available source-format copies or usable exports of communications already produced as PDFs or screenshots and responsive shipment-release, Net-Net, hold, release, payment, and related communications that have not previously been produced.
- Daynamez relies on statements about a website developer, a DGS debt notice, and an HBL surrender event. With respect to the DGS debt notice and HBL surrender event, Daynamez should produce any existing supporting records if it intends to rely on those matters, or state under verification that it will not rely on them. Separately, Daynamez should produce any existing responsive website-development communications and source records within its possession, custody, or control. For any website-development category not produced, Daynamez should state under verification that, after reasonable inquiry, no responsive record exists, the record cannot be located, or the record is outside its possession, custody, or control.

The unresolved alternatives at page 65 provide a concrete basis for a limited custodian declaration or verified response. SIC does not contend that such a declaration is automatically required in every production. Here, however, it is a practical means to resolve Daynamez's conflicting representations concerning the records searched, the files produced, and the source materials that remain unaccounted for. The declaration or verified response should identify with reasonable specificity all custodians, sources, systems, accounts, devices, repositories, and date ranges searched, together with the collection, export, and conversion methods used, whether or not a particular missing record has already been identified. For any responsive native, source, original, or underlying record not produced, the declaration or verified response should further state whether the material is unavailable, lost, deleted, destroyed, outside Daynamez's possession, custody, or control, or otherwise not produced, together with the reason for that status. It should also state whether Daynamez intends to rely upon the unproduced record or its alleged substance for any remaining defense or contention. For any file produced with annotations, highlights, captions, labels, or cropping, the same declaration or verified response should state whether those features formed part of the record as ordinarily maintained or were added for production. That focused

relief will establish what was searched, account for responsive records that remain unavailable or unproduced, and prevent reliance on unidentified or unproduced materials without requiring Daynamez to create substantive evidence that does not already exist.

IV. THE NEW FINANCIAL MATERIALS CONFIRM, RATHER THAN ELIMINATE, THE NEED FOR RECONCILIATION AND UNDERLYING RECORDS

Interrogatory Nos. 10 and 11 seek the receipt and ultimate disposition of each SIC payment and each downstream payment Daynamez claims it made, including date, amount, payee, shipment linkage, and supporting record. The July 20 materials supply additional aggregate information, but do not fully answer those questions or provide the requested transaction-level tracing.

First, the Response uses two differently defined outgoing-payment populations. It states that Daynamez made 81 outgoing wire payments totaling \$3,538,013.62 and calculates an asserted retained amount of \$599,831.61 by subtracting that sum from \$4,137,845.23 received from SIC. Resp. at 6, 17, 28. The same Response describes a separate compilation of 83 outgoing wire and fund-transfer transactions totaling \$3,573,013.62. Id. at 6. The \$35,000 difference consists of two transfers to Cargo Login LLC, \$20,000 on June 20, 2024, and \$15,000 on June 24, 2024, that appear in the 83-transaction Vendor Payments Statement but not in the 81-wire Excel schedule. The Response does not explain why those transfers are excluded from the 81-wire population, whether they constitute SIC-related disbursements, or how their inclusion or exclusion affects the asserted retained-margin calculation. SIC does not ask the Presiding Officer to select a financial figure on the present record. It asks Daynamez to reconcile and classify the two populations it introduced.

Second, the document titled “Vendor Payments Statement Certified” states that its entries were “[e]xtracted from monthly statements.” Daynamez’s Response likewise says that the entries were reproduced from Bank of America monthly statements. Resp. at 6, 67–83. The record does not show that the compilation itself was certified by Bank of America, and the production does not include the relevant monthly statement pages or corresponding bank-generated wire, book-transfer, or transaction confirmations. A party-prepared or extracted compilation may be useful as a summary, but the record does not establish that the compilation itself is a Bank of America-generated or Bank of America-certified record. Nor does the compilation replace the underlying records needed to review the dates, transaction references, account entries, and completeness of the population. SIC seeks only the relevant portions of the bank-generated statement pages, wire or book-transfer confirmations, ledgers, remittance records, and other transaction records concerning the SIC-related incoming and outgoing transactions on which Daynamez relies, with unrelated information redacted as appropriate.

Third, the schedules list vendors, amounts, transaction references, and in some instances a “Service Ref,” but they do not identify the corresponding SIC remittance, shipment or shipment group, provider invoice or obligation, amount retained or unapplied, or the basis for the asserted allocation. Daynamez responds that SIC and third-party providers are equally or better positioned to provide shipment linkages. Resp. at 17–18. That does not answer how Daynamez recorded, allocated, and disposed of funds in its own account or the basis for Daynamez’s affirmative payment contentions. The supplementation also states in the Interrogatory No. 11 answer that Kargosmart acted “as agent for Cargo Login,” while the amended RFA No. 12 response states that Cargo Login LLC was “Kargosmart’s U.S.-based agent.” Resp. at 18, 47. SIC does not seek a merits ruling on the relationship through this motion, but the final verified answer should state Daynamez’s position consistently.

Under § 502.145(d), a party using business records in place of a narrative interrogatory answer must specify the records in sufficient detail to permit the requesting party to locate and identify the

answer as readily as the responding party, and the burden of deriving the answer must be substantially the same for both parties. A general reference to aggregate schedules and third-party records does not satisfy that standard where Daynamez controls the account and the asserted payment population and is best positioned to identify how it recorded and allocated those payments and any allocation records it maintains.

The appropriate cure is limited. Daynamez should: (1) confirm the nature and purpose of the two Cargo Login LLC transfers, \$20,000 on June 20, 2024, and \$15,000 on June 24, 2024, explain why they appear in the 83-transaction Vendor Payments Statement but not in the 81-wire Excel schedule, state whether they constitute SIC-related disbursements, and explain their treatment in the asserted retained amount; (2) produce the existing bank-generated statement pages, wire or book-transfer confirmations, ledgers, remittance records, and other transaction records underlying the SIC-related entries; and (3) serve verified supplemental answers to Interrogatory Nos. 10 and 11 providing the transaction-level linkage reasonably available from Daynamez's records, or specifically identify the business records from which each answer can be derived. The Interrogatory No. 11 answer should also state consistently Daynamez's position concerning the relationship between Kargosmart and Cargo Login. SIC does not ask Daynamez to create a new bank record or accounting ledger.

V. THE AMENDED RESPONSE TO RFA NO. 12 REMAINS INTERNALLY UNCLEAR

RFA No. 12 asks Daynamez to admit that it communicated with Kargosmart Global Vietnam Co., Ltd. concerning one or more shipments at issue. Resp. at 47. Daynamez now begins with "Denied" and states that it did not communicate with that company. It then states: "To the extent any communication between Daynamez and Kargosmart Global Vietnam Co., Ltd. occurred, it occurred solely in Daynamez's capacity as handling agent," followed by a statement concerning "all the contact/communication Daynamez has had with Kargosmart." Id. at 47.

The asserted capacity of a communication does not answer whether the communication occurred. The direct denial and the conditional explanation leave uncertain whether Daynamez denies all communication after reasonable inquiry, admits some communication but disputes the capacity or legal significance, or cannot determine whether a communication occurred.

Rule 502.147(a)(4) requires a denial to fairly respond to the substance of the matter and requires any qualification to identify the portion admitted and qualify or deny the remainder. If an answer does not comply, the Presiding Officer may order an amended answer or deem the matter admitted. Id. § 502.147(a)(6). An amended answer is the proportionate remedy at this stage because it permits Daynamez to state clearly the result of its reasonable inquiry before any more severe consequence is considered.

SIC presently requests an amended answer, not an immediate deemed admission. Daynamez should state, after reasonable inquiry, whether it admits the communication occurred, denies that any such communication occurred, admits in part and identifies the communication, or lacks sufficient information after reasonable inquiry to admit or deny.

VI. THE OPERATIVE RESPONSES AND PRODUCTION INVENTORY REQUIRE LIMITED CORRECTION

Four limited corrections are necessary to make the supplementation usable.

First, the Response reproduces the wrong text for Interrogatory No. 18. It labels that interrogatory as a request to "[p]roduce all privilege logs," although SIC's actual Interrogatory No. 18 asks Daynamez to identify every document, communication, witness, calculation, and category of evidence it may use to support its defenses and specified contentions. Compare Resp. at 29 with

Dkt. 41, App. Ex. 2. Daynamez's narrative answer generally addresses the actual subject, so SIC does not characterize it as a complete non-answer. Daynamez should nevertheless serve a corrected final response reproducing the interrogatory as served and clearly identifying the evidentiary matters it continues to rely upon in light of Daynamez's representation that its Counterclaim has been dismissed.

Second, the final verified response should correct the inconsistent descriptions of the Kargosmart–Cargo Login relationship in the answer to Interrogatory No. 11 and the amended response to RFA No. 12. This correction would identify Daynamez's operative factual position without requiring the Presiding Officer to determine the legal effect of that relationship at the discovery stage.

Third, the Response states that a "full production index" appears in "Section VI.A." Resp. at 45. The served Response contains no Section VI.A; it proceeds from Sections I through IV and then to exhibits. It also refers to a complete production through DAYNAMEZ-000103, while the July 20 package includes DAYNAMEZ-000104–000109 and several separately named Excel and PDF files, some newly transmitted and others re-transmitted from the June 12 production. The package includes final, working, and draft versions without a consolidated supersession or duplicate map. Rule 502.146 permits Daynamez either to demonstrate that documents were produced as kept in the usual course of business or to organize and label them to correspond to the requests. Because Daynamez used Bates numbers and represented that a full production index existed, it should provide a corrected inventory covering the production actually served, including the July 20 additions, and identify the Bates range or filename, a brief description of the document or document category, the responsive RFP or production category, file format, source or custodian, production date, whether the document was newly produced or re-transmitted, and whether a corresponding source or native file was produced. Alternatively, Daynamez may explain with reasonable specificity how the production preserves its ordinary-course organization. SIC does not seek a hearing-exhibit list or admissions concerning authenticity or admissibility.

Fourth, the restated RFP responses do not provide a final, request-by-request disposition of the RFPs remaining at issue in Dkt. 41. A generalized assertion that production is complete does not identify whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Daynamez's possession, custody, or control, or are subject to a specifically stated objection. Corrected written responses should therefore be served for RFP Nos. 1, 2, 4, 5, 6, 13, 15 through 22, 26, and 27. This relief does not expand the discovery requests; it seeks a final response to the requests already placed at issue in Dkt. 41.

VII. REQUESTED RELIEF AS NARROWED BY THE JULY 20 CURES

SIC respectfully requests that the Presiding Officer grant Dkt. 41 in part, deem the formal verification and clean-Agreement issues cured, and order Daynamez to provide the following limited corrective relief:

1. Within ten calendar days, serve one finalized and internally consistent supplemental response that: (a) identifies the single operative response, confirms whether the document labeled "FINAL" is that response, incorporates into the finalized supplemental response any substantive statement appearing only in a Working or Draft version on which Daynamez intends to rely, and identifies all other versions as withdrawn and superseded; (b) replaces the unfinished Section IV at page 65; (c) serves verified supplemental answers to Interrogatory Nos. 3, 6, 12, 14, 15, and 18 to the extent the July 20 Response does not fully cure the deficiencies identified in Dkt. 41; (d) reproduces Interrogatory No. 18 as actually served; (e) states consistently Daynamez's position concerning the relationship between Kargosmart and

Cargo Login; (f) serves a compliant amended response to RFA No. 12; and (g) identifies any document, contention, defense, alleged debt, damages category, or evidentiary matter placed at issue in Dkt. 41 that Daynamez withdraws, corrects, replaces, supplements, or will not rely upon.

2. Within ten calendar days, serve corrected written responses to RFP Nos. 1, 2, 4, 5, 6, 13, 15 through 22, 26, and 27, stating, for each request, whether all responsive materials were produced, do not exist after reasonable inquiry, cannot be located after reasonable inquiry, remain to be produced, are being withheld, are outside Daynamez's possession, custody, or control, or are subject to a specifically stated objection.
3. Within ten calendar days, produce: (a) the existing native shipment-release and Net-Net workbooks and the represented Excel production tracker; and (b) all communications responsive to RFP Nos. 5, 6, 13, 19, 20, and 21, including emails, attachments, email families, text messages, and WhatsApp communications concerning Net-Net rates, calculations, allocations, commissions or profit sharing; shipment-release or hold instructions; cargo release, detention, unpaid freight, or additional-payment demands; and related communications with SIC, carriers, NVOCCs, terminals, and downstream service providers. The production should include reasonably available source-format copies or usable exports of communications previously produced as PDFs or screenshots, together with responsive communications not previously produced. Daynamez should map previously produced source communications to their Bates-stamped counterparts.
4. Within ten calendar days, serve a declaration or verified supplemental response by Zia Kamali or another knowledgeable custodian identifying with reasonable specificity the custodians, sources, systems, accounts, devices, repositories, and date ranges searched, and the collection, export, and conversion methods used. For any responsive native, source, original, or underlying record not produced, the declaration or verified response should state whether the record is unavailable, lost, deleted, destroyed, outside Daynamez's possession, custody, or control, or otherwise not produced, together with the reason for that status. It should also state whether Daynamez intends to rely upon the unproduced record or its alleged substance for any remaining defense or contention. For any file produced with annotations, highlights, captions, labels, or cropping, the declaration or verified response should also state whether those features formed part of the record as ordinarily maintained or were added for production.
5. Within ten calendar days, with respect to each matter on which Daynamez intends to rely, produce: (a) any existing DGS debt notice; and (b) the referenced DGS House Bill of Lading surrender copy or, if that copy does not exist or cannot be located, any other existing record evidencing the asserted surrender. As to either matter on which Daynamez does not intend to rely, Daynamez should state that position under verification. Daynamez should also produce any existing responsive website-development communications and source records within its possession, custody, or control. For any website-development category not produced, Daynamez should state under verification that, after reasonable inquiry, no responsive record exists, the record cannot be located, or the record is outside Daynamez's possession, custody, or control.
6. Within ten calendar days, reconcile the 81-wire/\$3,538,013.62 and 83-wire-and-fund-transfer/\$3,573,013.62 populations; confirm the nature and purpose of the \$20,000 June 20, 2024 and \$15,000 June 24, 2024 transfers to Cargo Login LLC; explain why those transfers appear in the 83-transaction Vendor Payments Statement but not in the 81-wire Excel schedule; state whether they constitute SIC-related disbursements and explain their treatment in the asserted retained amount; produce the existing bank-generated statement pages, wire or book-

transfer confirmations, ledgers, remittance records, and transaction records underlying the SIC-related entries, subject to reasonable redaction of unrelated transactions; and serve verified supplemental answers to Interrogatory Nos. 10 and 11 with specific record citations and the transaction-to-shipment or shipment-group information reasonably available to Daynamez.

7. Within ten calendar days, serve a corrected production inventory covering the RFPs at issue and the files produced or re-transmitted in response to those RFPs through July 20, including DAYNAMEZ-000104–000109 and separately named supplemental files. The inventory should identify the Bates range or filename, a brief description of the document or document category, the responsive RFP or production category, file format, source or custodian, production date, whether the document is new or re-transmitted, and whether a corresponding source or native file was produced. Alternatively, Daynamez may provide a reasonably specific explanation demonstrating that the production preserves its ordinary-course organization under § 502.146.
8. Permit SIC to serve limited follow-up discovery directed solely to information or materials first produced or first adequately identified pursuant to the resulting order, subject to the Scheduling Order or further direction of the Presiding Officer.

SIC does not presently request terminating sanctions, default, striking of defenses, evidentiary preclusion, or a discovery-stage determination concerning authenticity. SIC reserves the right to seek relief under 46 C.F.R. § 502.150(b) if Daynamez fails to comply with the resulting order, and to seek any other appropriate relief if later-developed facts warrant it. SIC further reserves the right to object to or seek appropriate relief concerning Daynamez's later reliance upon any responsive communication, attachment, source record, or alleged communication that was not timely disclosed and produced.

CONCLUSION

Daynamez's July 20 submission is relevant supplementation and should be considered. It should not, however, be treated as mooted the Motion merely because it adds verified answers and new compilations. The record now permits a narrower order focused on final and request-specific discovery responses, complete production of responsive communications and reasonably available source-format records, a verified account of the search performed, financial reconciliation and transaction tracing, a clear RFA response, and a usable production inventory. SIC respectfully requests that the Presiding Officer grant the Motion to Compel to that limited extent.

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.

By: _____

Nguyen Tien Phuong

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Dated: [INSERT FILING DATE]

VERIFICATION

I, Nguyen Tien Phuong, am the Director and duly authorized corporate representative of Southern International Co., Ltd. I have read the foregoing Limited Reply and declare that the factual statements contained therein are true and correct based on my personal knowledge and my review of Southern International Co., Ltd.'s business, discovery, production, and litigation records.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on [DATE], at Ho Chi Minh City, Vietnam.

By: _____
Nguyen Tien Phuong
Director and Authorized Corporate Representative
Southern International Co., Ltd.

CERTIFICATE OF SERVICE

I certify that on [INSERT FILING DATE], a true and correct copy of the foregoing Proposed Limited Reply was served by electronic mail upon:

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Director and Authorized Corporate Representative
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